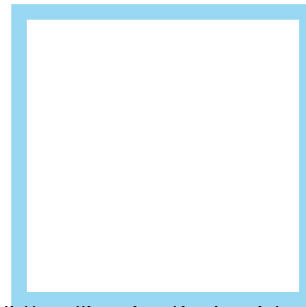


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# SCALE-UP VISA



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## SCALE-UP VISA

The Scale-up Visa is for talented individuals recruited by a UK Scale-up Sponsor, who have the skills needed to enable the Scale-up business to continue growing. You will need to have a highly-skilled job offer from a qualifying Scale-up business at the required salary level.

The Scale-Up route is a route to settlement in the UK. Applicants may be joined or accompanied by a partner and dependent children.

The Scale-up Visa route offers both a Sponsored Application route and an Un-sponsored Application route. If you are applying for the first time on the Scale-up route then you will need to make a sponsored application. The Un-sponsored Application route is only available to applicants who have previously been granted permission as a Scale-up Worker.

## Requirements for a Scale-up Visa – Sponsored Application

In order to qualify for a Scale-up Visa via a Sponsored Application, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You have a valid Certificate of Sponsorship issued by a qualifying Scale-up sponsor for the job you are planning to do;
- The job you are planning to do is genuine;
- The job you are planning to do is at an appropriate skill level (i.e. a SOC 2020 occupation code listed in Table 2 or Table 3 of **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>) identified as eligible for the Scale-up route);
- Your salary will be equal to or exceed both £36,300 per year and the 'going rate' for the SOC 2020 occupation code;

- You are competent in the English language to at least CEFR Level B1 (equivalent to IELTS 4.0);
- (7) You have enough money to support yourself without relying on public funds;
- You have provided a valid TB certificate, if required.

## Requirements for a Scale-up Visa – Unsponsored Application

In order to qualify for a Scale-up Visa via an Unsponsored Application, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You have previously been granted permission as a Scale-up Worker;
- You had monthly PAYE earnings in the UK equivalent to at least £36,300 per year (or £34,600 per year if your most recent permission on the route was granted on the basis of a Certificate of Sponsorship assigned between 12 April 2023 and 3 April 2024 or £33,000 per year if your most recent permission on the route was granted on the basis of a Certificate of Sponsorship assigned on or before 11 April 2023) during at least 50% of your most recent grant of permission as a Scale-up Worker;
- You are competent in the English language to at least CEFR Level B1 (equivalent to IELTS 4.0);
- You have enough money to support yourself without relying on public funds;
- You have provided a valid TB certificate, if required.

In either case, the exact requirements you will need to satisfy may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

**To discuss your Scale-up Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.**

## Scale-up Visa Certificate of Sponsorship (CoS) Requirement for a Sponsored Application

In order to obtain a Scale-up Visa via a Sponsored Application you will need to have a valid Certificate of Sponsorship for the job you are planning to do. Your Certificate of Sponsorship will need to have been issued by an employer that has been authorised by the Home Office to sponsor a Scale-up Worker.

Your employer can register as a Scale-up Sponsor via either the standard pathway or the endorsing body pathway.

## Standard Pathway



Under the standard pathway, the Home Office will automatically assess your employer's employment growth and/or turnover growth, based on information they have submitted to HMRC. <https://www.google.co.uk/search?q=richmond+members+in>

Your employer will need to have had an annualised growth of at least 20% for the previous 3-year period in terms of turnover or staffing. They will also need to have had a minimum of 10 employees at the start of this 3-year period.

## Endorsing Body Pathway

The endorsing body pathway is for organisations that are unable to qualify under the standard pathway because their HMRC history is not long enough, but can demonstrate clear potential/ability to do so in the next 4 years.

Under the endorsing body pathway, an **approved endorsing body** (<https://www.gov.uk/government/publications/endorsing-bodies-innovator-founder-and-scale-up-visas>) will confirm your employer's eligibility to apply for a Scale-up sponsor licence.

Your employer will need to satisfy the endorsing body that they meet various requirements.

## General CoS Requirements

Whichever pathway your sponsor registered via, your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors.

Once a Scale-up Sponsor has an A-rated licence, they can issue a CoS and sponsor you for 6 months for a job in a SOC 2020 occupation code listed in Table 2 or Table 3 of **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>) that is identified as eligible for the Scale-up route, with a salary that is equal to or exceeds £36,300 per year and the going rate for the SOC 2020 occupation code.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Scale-up Visa Sponsored Application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- Confirmation that you are expected to work for your Sponsor for at least 6 months;
- A start date which is no more than 3 months after the date of your Scale-up Worker Visa application;
- Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office.

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## Genuine Earnings Requirement

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In order to be granted a Scale-up Visa, you will need to satisfy the Home Office that your PAYE earnings are genuine. [https://www.google.co.uk/search?q=immigration+barristers+in+richmond+chamber+of+commerce&rlz=1C1GCE9Z\\_C991276611\\_1735771200\\_1000000000&oeq=af](https://www.google.co.uk/search?q=immigration+barristers+in+richmond+chamber+of+commerce&rlz=1C1GCE9Z_C991276611_1735771200_1000000000&oeq=af)

If there are reasonable grounds to believe that your PAYE earnings have been fabricated or inflated or do not relate to genuine employment then your Scale-up Worker application will be refused.

## Scale-up Visa English Language Requirement for all Scale-up Applications

In order to qualify for a Scale-up Visa (via either a Sponsored or Un-sponsored Application) you will need to demonstrate English language ability on the Common European Framework of Reference for Languages in all 4 components (reading, writing, speaking and listening) to at least level B1 (intermediate).

Talented individuals with a high-skilled job offer from a qualifying UK Scale-up business applying for entry clearance or leave to remain as a Scale-up migrant will satisfy the English language requirement if they:

- Are a national of a majority English-speaking country;
- Have passed a Secure English Language Test;
- Have been awarded a degree taught in English;
- Obtained a GCSE/A Level or Scottish Highers in English while at school in the UK; or
- Have already shown that they met the requirement, of level B1, in a previous successful application for entry clearance or permission to stay.

## Scale-up Visa Financial Requirement for all Scale-up Applications

Subject to the exemption below, in order to qualify for a Scale-up Visa (via either a Sponsored or Un-sponsored Application) you will need to have cash funds of at least £1,270 available.

You will need to have held the money for at least 28 consecutive days ending not more than 31 days before the date of your Scale-up Visa application.

You will be exempt from the financial requirement if your sponsor is willing to meet your maintenance costs up to the end of the first month of your employment, to an amount of at least £1,270, if necessary. Your sponsor will need to confirm this on your Certificate of Sponsorship.

If you are applying for permission to stay and have been in the UK with permission for 12 months or more at the date of application, you will meet the financial requirement and will not need to show funds.

## Immigration Skills Charge Requirement

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UK Scale-up Sponsors are not required to pay the Immigration Skills Charge. <https://www.google.co.uk/search?q=immigration+barristers&rlz=1C1GCE9DCH10ND+chambers+in>

## Switching into the Scale-up Worker Route

If you currently have leave to remain in another immigration category, you may extend your stay by switching into the Scale-up route unless you have, or were last granted, permission as a Visitor, Short-term student, Parent of a Child Student, Seasonal Worker, Domestic Worker in a Private Household or outside the Immigration Rules.

## Duration of a Scale-up Visa

If you are granted a Scale-up Visa on the Sponsored Application route then you will be granted entry clearance or permission to stay for a period of 2 years. At the end of the 2-year grant of permission, you will be able to make an unsponsored application.

If you are granted a Scale-up Visa on the Unsponsored Application route then you will be granted entry clearance or permission to stay for a period of 3 years.

## Conditions of Stay on the Scale-up Visa Route

If you are granted a Scale-up Visa on the Sponsored Application route then you will need to be employed in the job that you are being sponsored for for an initial period of 6 months. After this initial 6 month period, your immigration status will no longer be tied to your original sponsoring employer. You will therefore be able to continue working for the same employer without being sponsored or undertake additional or alternative work (including employment, self-employment and voluntary work) without being sponsored. You will also be permitted to study. You will not be able to access public funds.

If you are granted leave as a Scale-up Worker on the Unsponsored Application route then you will have a full right to work from the outset (including employment, self-employment and voluntary work), meaning that you will not be tied to a sponsoring employer. You will also be permitted to study. You will not be able to access public funds.

## Settlement as a Scale-up Worker

In order to qualify for indefinite leave to remain as a Scale-up Worker you will need to satisfy UK Visas and Immigration that:

- You have spent a continuous period of 5 years in the UK with valid leave;
- The 5-year continuous period has comprised time spent with permission in any of the following routes (alone or in combination): Scale-up, Skilled Worker, Global Talent,



- Innovator, T2 Minister of Religion, International Sports person, Representative of an Overseas Business, as a Tier 1 Migrant, other than Tier 1 (Graduate Entrepreneur) (<https://www.google.co.uk/immigrationbarristers>)
- (2) You are in employment in the UK on the date of application with a salary paid through PAYE of at least £36,300 per year (or £34,600 per year if your most recent permission on the route was on the basis of a Certificate of Sponsorship assigned between 12 April 2023 and 3 April 2024 or £33,000 per year if your most recent permission on the route was on the basis of a Certificate of Sponsorship assigned on or before 11 April 2023);
- You have had monthly PAYE earnings in the UK equivalent to at least £36,300 per year (or £34,600 per year if your most recent permission on the route was on the basis of a Certificate of Sponsorship assigned between 12 April 2023 and 3 April 2024 or £33,000 per year if your most recent permission on the route was on the basis of a Certificate of Sponsorship assigned on or before 11 April 2023) during at least 24 months of the last 3 years immediately before the date of application;
  - You meet the Knowledge of Life in the UK requirement (unless an exemption applies).

The Home Office will consider your guaranteed basic gross pay, recorded through UK-based PAYE. Other sources of income (including earnings from self-employment and earnings from outside the UK) will not be considered.

For the purpose of calculating your PAYE earnings in the UK during the last 3 years absences from work due to statutory maternity leave, paternity leave, parental leave, shared parental leave, statutory adoption leave or sick leave will be treated as periods during which you were paid the equivalent of at least £36,300 per year (or £34,600 per year if your most recent permission on the route was granted on the basis of a Certificate of Sponsorship assigned between 12 April 2023 and 3 April 2024 or £33,000 per year if your most recent permission on the route was granted on the basis of a Certificate of Sponsorship assigned on or before 11 April 2023).

## Genuine Earnings Requirement

In order to be granted settlement as a Scale-up Worker, you will need to satisfy the Home Office that your PAYE earnings are genuine.

If there are reasonable grounds to believe that your PAYE earnings have been fabricated or inflated or do not relate to genuine employment then your Scale-up Worker ILR application will be refused.

## Dependants of Scale-up Visa Applicants

Scale-up Visa holders can be joined or accompanied by a dependent partner over the age of 18 and dependent children under the age of 18.



# How Our Immigration Barristers Can Help



Our team of business immigration barristers is well placed to assist talented individuals with a highly-skilled job offer from qualifying UK Scale-up businesses. Our barristers can help you with your immigration application to ensure that you meet your start date and that your career progression will fit your immigration goals. Our business immigration barristers can also assist UK employers to obtain the right sponsor licence, maintain their licence at the highest rating and comply with their sponsor duties.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to employers and employees as part of a professional and friendly service.

## WE CAN ALSO ASSIST WITH

Applications for Indefinite Leave to Remain as a Scale-up Worker 

Fresh applications, Administrative reviews and Judicial reviews for Scale-up Visa Applicants 

Applications for Scale-up Worker Sponsor Licences 

Applications for Skilled Worker Visas 

## WHAT CAN WE HELP YOU WITH?

To discuss your Scale-up Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.

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## **LONDON OFFICE**

Richmond Chambers LLP  
Seven Henrietta Street  
Covent Garden  
London  
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)  
E / [info@richmondchambers.com](mailto:info@richmondchambers.com) (mailto:info@richmondchambers.com)

## **MONTREUX OFFICE**

Avenue Des Alpes 80B  
Montreux 1820  
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)  
E / [info@richmondchambers.ch](mailto:info@richmondchambers.ch) (mailto:info@richmondchambers.ch)

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